



State Department for Gender and Affirmative Action
National Gender and Equality Commission (NGEC)

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Rec. No.	Recommendation	Action	Indicator
142.42 142.43 142.44 142.45	Consider reviewing the National Policy and Action Plan on Human Rights to ensure that it addresses all emerging issues.	Commence the Review of the National Policy and Action Plan on Human Rights.	• Concept Paper and budget developed. • Roadmap for review developed finalized and adopted.
142.130	Set up specialized courts that enable the speeding up and the effective treatment of gender-based violence cases.	Commence stakeholders engagements on the establishment of specialized courts to deal with SGBV.	• Concept Paper developed and disseminated. • No. of stakeholder forums held. • Number of investigators prosecutors and Judges trained on how to handle SGBV Cases.
142.170 142.171 142.172 142.173 142.174 142.175 142.229 142.258	Accelerate efforts to combat trafficking in persons.	Increase efforts to combat trafficking in persons through creation of an enabling environment and by providing sufficient protection for victims of trafficking. Prosecute perpetrators of trafficking in persons.	• Standard Operating Procedures to aid in the identification, investigation and prosecution of traffickers developed. • National Action Plan for Combatting Human Trafficking Reviewed. • Sexual Offences Policy adopted. • Counter Trafficking in Persons Act, 2010 reviewed. • Number of perpetrators prosecuted and convicted.
142.136 142.168	Intensify efforts to secure redress for survivors of sexual violence following 2007 and 2017 Presidential elections and establish mechanisms to ensure such crimes are never repeated.	Provide redress for survivors of SGBV following 2007 and 2017 Presidential elections. Finalize the review of the Kenya Social Protection Policy.	• No. of victims who have received compensation and psychosocial support. • No. of law enforcement officers who have received training.

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142.136 142.168	Intensify efforts to secure redress for survivors of sexual violence following 2007 and 2017 Presidential elections and establish mechanisms to ensure such crimes are never repeated.	Provide redress for survivors of SGBV following 2007 and 2017 Presidential elections.	• No. of victims who have received compensation and psychosocial support.
		Finalize the review of the Kenya Social Protection Policy.	• No. of law enforcement officers who have received training.
		Enhance capacity of security agencies to prevent, combat, report and investigate SGBV cases and other election offences during and after elections.	• No. of One stop GBV Centers established.
		Establish Joint Election Security Coordination Framework.	• Joint Election Security Coordination Framework established.
142.155	Implement the recommendations of the 2017 EU Election Observation Mission, especially to strengthen the independence of the media and journalists and to provide protection for civil society.	Implement recommendations of 2017 EU Election Observation Mission on strengthening independence of media and journalists and protection of civil society.	• Recommendations Implemented.
142.167 142.169	Ensure that all human rights are duly respected and protected in the run up to and during the coming general elections in 2022.	Fully Implement the 2021 IEBC Elections Operations Plan.	• The IEBC Elections Operations Plan Implemented.
142.134	Combat hate speech, particularly during election periods, and punish incitements to racial or ethnic hatred.	Combat hate speech, particularly during election periods, and punish incitements to racial or ethnic hatred.	• No. of stakeholders trained.
142.133	Continue to prosecute acts of racial discrimination and hate speech and adopt a comprehensive strategy to eliminate harmful cultural practices.	Investigate and Prosecute Cases on Racial Discrimination and Hate Speech.	• No. of cases investigated and prosecuted.
142.39 142.53	Improve the mechanisms for collection of disaggregated data in order to facilitate an integrated assessment of advances in the promotion of human rights and in the implementation of the SDGs.	Allocate adequate resources to enable frequent data collection with human rights indicators.	• Amount of Resources allocated per financial year.
		Review the Statistical Act, KNCHR 2006 to include Operationalization of the CSOs Citizen Generated Guidelines.	• No. of reported human rights/SDGs Indicators.
		Establish the National Urban Observatory (NUO) to monitor implementation of SDG11.	• Statistical Act 2006 reviewed.
			• Database on housing and informal
142.65 142.180 142.183 142.184 142.185 142.186 142.187 142.188 142.189 142.190 142.234	Continue to promote economic, social development and improve the living standard of its people.	Implement existing programmes aimed at poverty alleviation, inequality and unemployment including affirmative action funds.	• No. of Youths absorbed in the Youth Empowerment Programme (KaziMtaani).
			• No. of beneficiaries from the Post COVID economic recovery strategy.
			• No. of beneficiaries supported through affirmative Funds.
			• No. of groups supported through grants in women economic empowerment.
		Increase Allocation of resources for programmes that impact directly on the lives of vulnerable groups (including Affirmative Action Programmes).	• Amount of funding allocated to programmes that directly impact on the lives of vulnerable groups.
142.245	Device ways and means to be in a position to allocate adequate resources for the effective implementation of actions geared to the advancement of human rights and conditions of children and working mothers.	Establish Lactation stations at the workplace to support breastfeeding mothers.	• No. of Lactation stations established in the MDAs.
		Allocate adequate resources for the advancement of human rights of children and working mothers.	• Adequate Resources allocated.

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142.73 142.74 142.75	Ensure the final approval, launch and execution of the National Action Plan for the implementation of the Guiding Principles on Business and Human Rights.	Build Capacity and Disseminate the National Action Plan on Business and Human Rights.	• No. of stakeholders trained on Business and Human Rights and the National Action Plan on Business and Human Rights.
142.202	Review all legal, policy and structural barriers that impede the provision of sexual and reproductive health (SRH) services, in particular against adolescent girls, young women and members of key populations more vulnerable to HIV and implement comprehensive human rights-based programmes in this area.	Review legal, policy and structural barriers that impede provision of SRH services against adolescent girls, young women, and key populations more vulnerable to HIV.	• Sexual and Reproductive Health Act developed.
142.195	Improve maternal and child health care by redoubling investments in line with its International Conference on Population and Development commitments.	Implement and scale up Linda Mama Programme.	• Percentage of Implementation of The Action Plan for the Implementation of ICPD 25 Kenya Country Commitments 2020 – 2030.
142.111	Actively implement the positive measures to end gender-based violence and harmful practices, including through recent legislative frameworks, a pledge to end female genital mutilation, and its commitment to reduce maternal deaths.	Combat hate speech, particularly during election periods, and punish incitements to racial or ethnic hatred.	• Percentage increase in no. of women accessing Linda Mama Programme.
142.206	Reaffirm that the right to life exists from conception until natural death and redouble efforts to protect it as such.	Develop programmes to reaffirm the right to life as provided under Article 26 of the Constitution of Kenya.	• Percentage increase in support for programs for pregnant women and teenage mothers. • No. of girls benefiting from the back-to-school policy.
142.177 142.234	Continue to take measures aimed at addressing the issue of youth unemployment.	Develop initiatives to address youth unemployment.	• Amount of Funding allocated to the Uwezo fund, Youth Enterprise Development Fund.
142.207 142.208 142.209 142.210 142.215 142.217	Continue to Increase investment in education and improve education in rural areas.	Improve access to quality education in rural areas.	• No. of educational institutions implementing home grown school meals programmes. • No. of low-cost boarding Schools established in all regions including ASAL. • No. of school children benefiting from mobile learning kits in nomadic communities. • No. of rural educational institutions with upgraded infrastructure. • No. of primary schools with newly constructed and equipped computer laboratories.
142.211	Ensure equal access to education through the full integration of refugees and asylum seekers into national education policies by 2020, in accordance with the 2017 Djibouti Declaration.	Integrate refugees and asylum-seekers into national education policies by 2020, in accordance with the 2017 Djibouti Declaration.	• Policy for inclusion of refugees and asylum seekers into the national education and training system adopted.
142.212 142.220 142.254	Consider taking further measures to increase the number of girls and women in secondary and higher education, including through specific measures aimed at ensuring adequate access to education for girls with disabilities.	Review, adopt and implement laws, policies, and measures to promote inclusive education. Fully Implement the sector policy for learners and trainees with disabilities (2018).	• No. of Laws and Policies on Inclusive Education enacted or adopted. • Percentage of implementation of the sector policy for learners and trainees with disabilities.
142.213 142.214 142.218 142.219 142.221 142.223	Continue measures to ensure highest quality of education throughout the country without discrimination and continue efforts to address inequalities between men and women in education.	Fully Implement programs in place to address inequalities between men and women in education.	• No. of girls in primary school and secondary schools who have received sanitary towels. • No. of students who have returned to school through the re-entry policy.

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		Continue to train and build Capacity of Teachers on the Competency Based Curriculum (CBC).	• No. of teachers trained.
142.216 142.222	Take further steps to promote access to technical vocational and education training institutions, especially for women and young people.	Promote access to technical vocational training for women and young people through construction of new Technical and vocational colleges, rehabilitation of existing technical and vocational colleges. Develop and implement market-oriented vocational training and literacy programmes for women.	• No. of Technical and Vocational Colleges Constructed and Rehabilitated. • No. of market oriented vocational training and literacy programmes for women developed and implemented.
142.191	Take measures to ensure access to basic healthcare, education, and other relevant social welfare systems to the population in a vulnerable situation.	Provision of student loans and bursaries to students from disadvantaged social economic backgrounds.	• No. of TVET and private university students receiving HELB loans.
142.261	Implement a comprehensive birth registration program in order to prevent minorities from having limitations on the right to nationality.	Implement a universal comprehensive Birth Registration program especially targeting minority and stateless persons. Digitization of birth and death register.	• No. of minority and stateless persons registered at birth. • Finalized automation of the birth and death register.
142.244	Implement the provisions of the Convention on the Rights of the Child.	Implement the recommendations to Kenya's 2nd-5th periodic state report on the CRC by the Committee on the Rights of the Child.	• Percentage of recommendations Implemented.
142.27	Finalize the adoption processes of the draft bills on children, mental health, and persons with disabilities.	Finalize and Submit the Children mental health, and persons with disabilities Bill to Parliament.	• The Children's Bill submitted to Parliament for Approval.
142.229 142.250 142.256	Continue the fight against discrimination and violence against women and children, including trafficking, forced labour and domestic abuse as well as improve reporting and bringing to justice perpetrators of such acts.	Implement the National Prevention and Response Plan on Violence against Children (2019-2023). Implement the recommendations of Violence against Children (VAC) Survey Report 2019. Prosecute the perpetrators of violence against women and children. Training of law enforcement personnel and local authorities in rural and coastal regions, on identifying, investigating, and managing trafficking cases. Implement the national strategy on disability mainstreaming.	• The National Prevention and Response Plan on Violence against Children implemented. • Implemented recommendations of the VAC Survey. • No. of cases prosecuted. • No of personnel trained. • Percentage of implementation of the National strategy on disability mainstreaming.
142.257 142.41	Consider further measures to enhance the meaningful participation of indigenous peoples in all matters affecting them.	Implement the Community Land Act and the County Government Act. Finalize legislation that gives effect to Article 100 of the Constitution. Mapping of minorities and marginalized communities in Kenya.	• The Community Land Act and the County Government Act Implemented. • Legislation on Article 100 finalized. • Report Mapping of minorities and marginalized communities in Kenya.
142.200 142.255	Take additional measures to address lack of access to high-quality healthcare for women, including women with disabilities.	Increase access to high quality healthcare for women with disabilities Improve physical infrastructure and health technologies to be accessible to persons with disabilities.	• No. of health facilities providing information on health services in accessible formats. • No. of health facilities providing health services that are accessible to persons with disabilities.

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142.62	Develop and adopt appropriate legislative and administrative measures to combat discrimination against women as well as discrimination and violence against LGBTI people.	Develop and adopt legislative and administrative measures to combat discrimination against vulnerable groups.	Specific measures adopted to address de facto discrimination in service provision including affirmative action measures adopted in policy plans.
142.61	Continue collecting and analyzing disaggregated data on women with the aim to combat discrimination based on religion, ethnic background, age, health, disability, and sexual orientation.	Collect and analyze disaggregated data by sex, age, disability, and ethnicity to combat discrimination.	- Operational and accessible gender data repository centre. - Adoption of the gender sector statistics plan by county Governments and MDAs.
142.59 142.64	Amend discriminatory laws against women and eliminate harmful practices and gender-based violence against women and girls.	Undertake mapping of discriminatory laws highlighting their implication on men, women, boys, and girls. Amend laws that discriminatory against women.	- Report on number of laws analyzed. - No. of discriminatory laws amended.
142.178 142.179	Take additional measures to eliminate discrimination and harassment in the workplace, including on the bases of sex and sexual orientation and gender identity.	Amend the Employment Act to provide enforcement and redress mechanism for sexual harassment. Develop national guidelines on gender mainstreaming in the workplace. Develop and implement a national standard/tool for measuring compliance to employment act in all sectors and across all levels. Audit compliance of the provisions of the Health Act 2017 with Provision 71 and 72 Audit implementation of the Employment Act 2007, on having in place a sexual harassment policy at workplace.	- Employment Act amended. - National Guidelines on gender mainstreaming in the workplace finalized. - Standard/tool finalized and implemented. - A report on the status of equality and inclusion developed. - No. of audits conducted.
142.33 142.34 142.35	Finalize and implement, in 2020, the Draft National Action Plan to Ending Child Marriage in Kenya.	Finalize the Draft National Action Plan to Ending Child Marriage.	National Action Plan adopted and implemented.
142.54	Redouble efforts to provide training to medical, security and justice professionals on the application of its criminal law punishing harmful practices such as child, early and forced marriage; female genital mutilation; and girl "beading".	Sensitize duty bearers on existing legal framework such as Children's Act 2001, Prohibition of FGM Act. Sensitize communities on the consequences of harmful cultural practices.	- No. of Police, Medical, Children and Judicial officers trained and sensitized in the 22 FGM hotspot counties. - Number of community members sensitized on existing legal framework and consequences of harmful cultural practices.
142.95 142.96 142.97 142.98 142.99 142.100 142.101 142.102 142.103 142.104 142.105 142.106 142.107 142.108 142.109 142.110 142.111 142.112 142.114 142.115 142.116 142.117 142.133 142.115 142.117 142.133 142.64	Make an effort to implement existing legislation to end female genital mutilation. Create joint efforts by member states to end Cross boarder FGM.	Prosecute all perpetrators of FGM including medical doctors. Disseminate the National Policy on Anti FGM. Implement the regional cross boarder action plan by the five member states of Kenya, Tanzania, Somalia, Uganda, and Ethiopia to end FGM.	- Number of cases reported, prosecuted, and convictions obtained. - No of people sensitized on the National Policy on Anti FGM. - Number of Community living at the borders sensitized on the effects of FGM and the cross-border Action plan.

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142.166	Make efforts to eradicate gender stereotypes that result in violence against women.	Enhanced campaigns to eradicate gender stereotypes that result in violence against women.	• No. of campaigns held.
		Integrate gender awareness components into all programmes training teachers & trainers in education institutions, community leaders and gatekeepers.	• No. of training programmes integrating gender awareness.
		Engage male champions to address the social cultural barriers.	• No. of male champions actively engaging in to dispel cultural and gender stereotypes.
142.60	Strengthen gender equality by implementing the two-thirds gender principle in all elective or appointive bodies in a timely manner.	Develop bills necessary to effectively implement the 'not more than two thirds gender principle' and lobby for the adoption.	• Draft bills presented to parliament for adoption.
		Assess the Implementation of the two-thirds gender principle in all elective or appointive bodies.	• No. of consultative meetings held on the Bill.
			• Ratio of men to women in elected and nominated positions.
			• No. of institutions complying with the "not more than two thirds gender" principle.
142.63 142.165 142.166	Establish mechanisms to increase the participation of women in political and public life, in decision-making positions.	Implement the National Policy on Gender and Development.	• Percentage of Implementation of the National Policy on Gender and Development.
		Implement the National Strategy to support greater participation of women for elective politics.	• National Strategy to support greater participation of women for elective politics implemented.
		Train women in leadership skills.	• No. of women trained.
			• No. of women participating in decision-making as a result of training.
142.221 142.224	Continue efforts to address inequalities between men and women in education.	Develop strategies to enhance retention of girls in school.	• Percentage change of retention rates and performance among girls.
		Create public awareness on education re-entry policy.	• No. of students reentering schools.
142.225	Continue to develop the national machinery for the advancement of women, strengthen coordination between various executive bodies and provide them with adequate resources.	Develop a national coordination and accountability mechanism for women comprising of various executive bodies.	• Coordination and Accountability mechanism put in place.
142.230	Guarantee women access to land by inter alia ensuring the full implementation of the constitutional provisions giving women equal rights to land ownership as men as well as the execution of the Marital Property Act and other women's land rights.	Undertake public awareness forums on the available legal frameworks on equitable access to land and other natural resources. Facilitate women's access to land.	• No. of public awareness forums on women, land and property rights Land registration systems digitized.
		Fully implement the Constitutional and other legal provisions on women equal rights to land ownership.	• Percentage change in women access and ownership of land and property.
			• No. of cases presented to land tribunals courts or other forms of alternative land dispute resolution mechanisms (ADR) and concluded.
		Review laws and policies that discriminate against women's access to land.	• No. of Laws reviewed.
142.232 142.233 142.234	Further promote women empowerment and gender equality.	Put in place measures to promote political, economic, and social rights of women.	• Percentage change in the uptake of affirmative action funds and programme by Women.
		Implement the Women Economic Empowerment Strategy (2020-2025).	• Strategy Implemented.

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142.67	Ensure that women, especially rural women, are meaningfully engaged in the development and implementation of climate change and disaster risk reduction legislation and policies.	Engage women, especially rural women in development of laws and policies relating to climate change and disaster risk reduction.	• No. of rural women consulted.
142.226	Implement United Nations Security Council Resolution 1325 and related resolutions on women, peace, and security.	Monitor the implementation of the second national action plan for women peace and security.	• Reports on the status of implementation of the national action plan on women peace and security.
		Creating awareness on the National Action Plan on Women Peace and Security.	• No. of awareness forums held.